

9:00 3	25CV458977	<i>Lumenis Be, Inc. v. Dr. Iris Cruz</i>	Order on Motion to Confirm Arbitration Award and Enter Judgment Thereon Petitioner Lumenis Be, Inc. (“Petitioner”) moves for an Order: 1. Confirming the final arbitration award, dated November 21, 2024 in favor of Petitioner and against Respondent Dr. Iris Cruz, aka Dr. Iris M. Cruz Navarro (“Respondent”) under C.C.P. §§ 1285 <i>et seq.</i>; and 2. Entering Judgment in the amount of \$290,131.64 <i>plus</i> interest damages of \$42,731.56 <i>plus</i> attorneys’ fees of \$1,935.00, for a total Judgment of \$334,798.20 in favor of Petitioner and against Respondent. Mot. at pp. 2 & 10 (“the Motion”). The Motion is well grounded in the law, well supported by the facts, and reasonable in all respects. Respondent has not filed any Opposition to the Motion. “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c). Accordingly, Petitioner’s Motion is GRANTED in all respects. Petitioner is to prepare and file a formal order after this hearing.
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9:00 4	25CV461808	<i>Gloria Guohang Zhang et al. v. BioVision Inc. et al.</i>	Order on Petition to Confirm the Arbitration Award and Enter Judgment Thereon See Line 4 below for complete tentative ruling. The Court will prepare and file the formal order after the hearing.
9:00 5	25CV461808	<i>Gloria Guohang Zhang et al. v. BioVision Inc. et al.</i>	Order on Respondent's Motion to Vacate the Arbitration Award or, in the Alternative, to Correct the Arbitration Award See Line 5 below for complete tentative ruling. The Court will prepare and file the formal order after the hearing.
9:00 6			
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9:00 14			
9:00 15			

Line 1

Line 2

Line 3

Line 4

Case Name: *Gloria Guohang Zhang et al. v. BioVision Inc. et al.*

Case No.: 25CV461808

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Petitioners Gloria Guohang Zhang (“Zhang”) and Gordon Gouchen Yan (“Yan”) (collectively, “the Petitioners”) move the Court for an Order:

1. Confirming the Final Arbitration Award, dated February 19, 2025 (the “Award”) in favor of Petitioners and against Respondents BioVision, Inc. and Abcam U.S. Group Holdings, Inc. (collectively, the “Respondents”) under C.C.P. 1285 *et seq.*; and
2. Entering Judgment in the amount of \$6,026,000.65 (\$3,013,000.12 for each Petitioner) which consists of \$4,766,335.70 (\$2,383,167.85 for each Petitioner) in actual damages *plus* \$1,243,165.94 (\$621,582.97 for each Petitioner) in pre-Award interest *plus* \$16,499.01, in favor of Petitioners and against Respondents. On top of that total award of \$6,026,000.65, Petitioners are also entitled to post-Award interest in the amount of \$1,659.96 (\$829.98 for each Petitioner) per day from February 19, 2025 (the date of the Award) until the date that the Award is satisfied or Judgment is entered.

Petition at 4. This amount that Petitioners seek in this Judgment is exactly what was awarded to them by Arbitrator Dana Welch in the February 19, 2025 Award. Award at p. 26 (attached as Ex. 7 to Petition).

In Respondents’ accompanying Motion under CCP §§ 1286.2(a)(4) & 1286.6(b) to Vacate or, in the Alternative, Correct the Award, Respondents argue that the Arbitrator exceeded her powers because she incorrectly interpreted and applied the statutory exception of Section 16601 to the general public policy against non-competes in Section 16600 of Business and Professions Code. MPA ISO Mot. to Vacate at 6 & 9-11. But for all the reasons set forth in the Court’s accompanying Order DENYING Respondent’s Motion to Vacate or, in the Alternative, Correct the Award, that argument fails. As the Legislature created an express exception in Section 16601 to the general policy of Section 16600, the Arbitrator did not violate this policy by interpreting and applying Section 16601—regardless of whether Respondents agree with that interpretation and application. As the Arbitrator did not violate public policy by the Award, Respondents’ sole ground that the Arbitrator exceeded her powers by the Award fails. And as the Arbitrator did not exceed her powers by the Award, there is no basis for this Court to review the Award under CCP §§ 1286.2(a)(4) or 1286.6(b). *SingerLewak LLP v. Gantman*, 241 Cal. App. 4th 610, 622 (2015); *Board of Education v. Round Valley*

Teachers Assn., 13 Cal. 4th 269, 276 (1996); *Aguilar v. Lerner*, 32 Cal. 4th 974, 981 (2004)).

While Respondents' accompanying Motion to Vacate or, in the Alternative, Correct the Award being baseless and DENIED, in contrast Petitioners' Motion to Confirm the Award is well grounded in the law, well supported by the facts, reasonable in all respects.

Accordingly, the Court **GRANTS** Petitioners' Motion to:

1. Confirm the Final Arbitration Award, dated February 19, 2025, in favor of Petitioners and against Respondents BioVision, Inc. and Abcam U.S. Group Holdings, Inc. and
2. Enter Judgment in the amount of \$6,026,000.65 (\$3,013,000.12 for each Petitioner) which consists of \$4,766,335.70 (\$2,383,167.85 for each Petitioner) in actual damages *plus* \$1,243,165.94 (\$621,582.97 for each Petitioner) in pre-Award interest *plus* \$16,499.01, in favor of Petitioners and against Respondents. On top of that total award of \$6,026,000.65, Petitioners are also entitled to post-Award interest in the amount of \$1,659.96 (\$829.98 for each Petitioner) per day from February 19, 2025 (the date of the Award) until the date that the Award is satisfied or Judgment is entered.

IT IS SO ORDERED.

Date: November 5, 2025

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 5

Case Name: *Gloria Guohang Zhang et al. v. BioVision Inc. et al.*

Case No.: 25CV461808

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Respondents BioVision, Inc. and Abcam U.S. Group Holdings, Inc. (collectively, the “Respondents”) move under C.C.P. § 1286.2 for an Order vacating the Final Arbitration Award, dated February 19, 2025 (the “Award”) that was entered in favor of Petitioners Gloria Guohang Zhang (“Zhang”) and Gordon Guochen Yan (“Yan”) (collectively, “the Petitioners”). In the Alternative, Respondents move under C.C.P. § 1286.6 for an Order correcting the Award.

The plain text of Sections 1286.2(a)(4) and 1286.6(b)—which Respondents invoke to vacate or, in the Alternative, correct the Award—expressly hinges on whether the Arbitrator “exceeded [her] powers.” CCP. §§ 1286.2(a)(4) & 1286.6(b). So here, if the Arbitrator did not exceed her powers in the Award then this Motion under 1286.2(a)(4) and 1286.6(b) would be baseless and fail.

Respondents’ argument that the Arbitrator exceeded her powers goes like this:

1. An arbitrator exceeds her powers if the Award violates public policy.
2. Non-compete agreements are generally unenforceable as a matter of public policy under Bus. & Prof. Code § 16600.
3. The Arbitrator interpreted and applied Section 16601’s statutory exception to this policy of Section 16600 by finding that the non-competes here were entered into in conjunction with the sale of BioVision business. Bus. & Prof. Code § 16601.
4. The Arbitrator is wrong as a matter of interpretation and application because (Respondents argue) the non-competes here do not fall within the statutory exception of Section 16601.
5. Respondents conclude: “Therefore, the Secondary Non-Compete Agreements do not fall within the statutory exception outlined in section 16601 *and are in violation of California’s well-defined public policy.*”

MPA ISO Mot. to Vacate at 6 & 9-11 (emphasis added).

But there is a false premise in Respondent’s argument: that if the Arbitrator incorrectly interpreted and applied Section 16601 “therefore” the Arbitration violated the policy of 16600. The premise is false as a matter of logic and law for all the reasons